

Summary:

Sustain the demurrer to the 1st, 2nd, 4th, 5th, 7th, 11th, 12th, 13th, and 14th causes of action with 21 days' leave to amend.

2.

| CASE #      | CASE NAME     | HEARING NAME                                                                                                                                |
|-------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------------|
| CVRI2406420 | DUPUY VS GUMM | MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, TO ANDREA GUMM; BY JESSIE DUPUY, KENNETH MICHAEL DUPUY |
| CVRI2406420 | DUPUY VS GUMM | MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION, SET TWO, TO ANDREA GUMM; BY JESSIE DUPUY, KENNETH MICHAEL DUPUY               |
| CVRI2406420 | DUPUY VS GUMM | MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO BY JESSIE DUPUY, KENNETH MICHAEL DUPUY                               |

**Tentative Ruling:**

**Moving party:** Kenneth Micheal Dupay and Jessie Dupay, Plaintiffs and Cross-Defendant, in pro per ("the Dupays")

**Responding party:** Cross-Complainant Andrea Gumm

On November 21, 2024, a Complaint was filed for injunctive relief and damages for: (1) civil harassment; (2) private nuisance; (3) intentional infliction of emotional distress (IIED); (4) unlawful noise disturbance (5) reckless and dangerous driving; (6) unlawful noise disturbance; (7) negligence; (8) intentional infliction of emotional distress, negligence, and assault; and (9) intentional interference with quiet enjoyment. A First Amended Complaint was filed on January 3, 2025.

A Second Amended Complaint was filed on February 20, 2025 for: (1) civil harassment (injunctive inclusive, relief only); (2) private nuisance; (3) intentional infliction of defendants. emotional distress (IIED); (4) negligence (including reckless driving); and (5) intentional interference with quiet enjoyment unlimited civil jurisdiction). A Third Amended Complaint was filed on August 19, 2025.

An Answer was filed on April 9, 2025. A Cross-Complaint was filed on May 6, 2025 for: (1) civil harassment; (2) intentional infliction of emotional distress; (3) private nuisance; (4) conspiracy; and (5) negligence.

The Dupuys now move to compel Andrea Gumm to serve further responses, without objection, to (1) Special Interrogatories, Set Two, Nos. 2636-45; 47-48; and 50; (2) Requests for Admission, Set Two, Nos. 37-38; 41; 44-48; and (3) Requests for Production of Documents, Set Two, Nos. 42, 50, 52, 54-55. For each motion, the Dupays also ask for sanctions in the amount of \$250.

The issues are the same for the three concurrent motions, and the Court's tentative is the same. The tentative is discussed in the context of the Motion to Compel Further Responses to Special Interrogatories, Set Two.

These motions are made on grounds that Andrea Gumm's responses are evasive, incomplete, objection-heavy, and fail to comply with CCP §§ 2030.220, 2030.230 and 2030.300. Several responses improperly rely on vague references to writings without identifying specific documents or Bates numbers, while other responses consist of boilerplate objections and fail to provide the facts requested.

The motion as to production is made under CCP § 2031.310 and the motion as to RFAs is made under CCP § CCP § 2033.210 and 2033.220.

In Opposition, Andrea Gumm contends that (1) this motion is untimely because movants failed to file this Motion within the mandatory 45-day deadline of CCP §2031.310 and (2) movants failed to comply with the mandatory meet and confer requirements of CCP §§ 2031.310(b)(2) and 2016.040. Andrea Gumm asks for sanctions in the amount of \$2,763.40.

In the prior motions to compel further responses from Arthus Lester Gumm, no sanctions were imposed against movant. Likewise, the Court does not impose sanctions here.

The motion as to production is made under CCP § 2031.310 and the motion as to RFAs is made under CCP § CCP § 2033.210 and 2033.220.

## **Analysis**

### **I. Chronology**

Here, on February2, 2026, the Dupuys served Special Interrogatories, Set Two, limited to the First Amended Cross-Complaint ("FACC") only on Plaintiff/Cross Complainants Arthur Lester Gumm (and Andrea Gumm). The service included Requests for Admission, Requests for Production of Documents, Special

Interrogatories, and Form Interrogatories as separate sets for each responding party. (Declaration of Kenneth Michael Dupuy (“Dupuy Decl.”), ¶12.)

The moving Dupuy Decl. does not include reference to attached exhibits in the body of the declaration. The attached exhibits are:

- A. 2/2/26 Service email (with discovery attached);
- B. 2/3/26 Clarification email;
- C. Propounded Special Interrogatories, Set Two to Andrea Gumm.
- D. Andrea Gumm’s responses to Special Interrogatories, Set Two.
- E. Verifications of Andrea Gumm executed on March 18, 2026.
- F. 3/7/26 Meet and Confer Email;
- G. 3/18/26 Final Meet and Confer Letter;
- H. 3/24/26 Defense Response Email;
- I. 4/1/26 Supplemental Service Email.

Andrea Gumm served responses dated March 6, 2026. (Dupuy Decl., ¶13.) On March 7, 2026, Mr. Dupuy sent a meet and confer email to counsel for Andrea Gumm identifying deficiencies in the responses, including improper document references, objection-only responses, and failure to provide complete responses. (Dupuy Decl., ¶15.) Mr. Dupuy requested code-compliant responses and attempted to resolve the issues without court intervention. (Dupuy Decl., ¶16.) On March 18, 2026, Mr. Dupuy sent a final meet and confer email providing an additional opportunity to cure the deficiencies. (Dupuy Decl., ¶17.) Responding Party did not provide code-compliant supplemental responses resolving the issues raised in this motion. (Dupuy Decl., ¶18.)

## **I. Timeliness**

CCP § 2030.300(c) provides: “Unless notice of this motion is given within 45 days of the service of the verified response ... the propounding party waives any right to compel a further response to the interrogatories.” California courts interpret such 45-day statutory deadline as mandatory and jurisdiction, meaning the trial court has no jurisdiction to entertain an untimely motion. (*Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (2022) 84 Cal. App. 5th 127, 1371 (2022); *Vidal Sasson, Inc. v. Sup. Ct.* (1983) 147 Cal. App. 3d 681, 683 (holding that deadlines for motions to compel further responses are “mandatory and the court may not entertain a belated motion to compel”); see also *Rab v. Weber* (2023) 91 Cal. App. 5th 1337, 1347 (same regarding document requests).

Here, it is undisputed that unverified written responses were initially served. On March 19, 2026, Andrea Gumm's verification was served by email. (Opposing Declaration of Karn E. Jung ("Jung Decl."), ¶3, Ex. 1.) The deadline for a motion to compel further responses was then a date that was 45 days after March 19, 2026, plus two court days. May 5, 2026 was the deadline. However, the motion was not filed until May 11, 2026. (Jung Decl., ¶4, Ex. 2.)

"Thus, when verifications are provided electronically, the deadline for filing the motion is 45 calendar days plus 2 court days after service of verifications. [CCP § 1010.6(a)(3); *Golf & Tennis Pro Shop, Inc. v. Sup.Ct. (Frye)* (2022) 84 CA5th 127, 136-137, 300 CR3d 225, 232—motion filed 1 day late was untimely]

Delaying the motion beyond the 45-day time limit *waives* the right to compel a further response to the interrogatories. [CCP § 2030.300(c); see *Vidal Sassoon, Inc. v. Sup.Ct. (Halpern)* (1983) 147 CA3d 681, 685, 195 CR 295, 298—court *lacks jurisdiction* to order further answers after 45 days]"

In *Golf & Tennis Pro*, supra, the deadline for a motion to compel discovery responses was May 4, 2021. (*Golf & Tennis Pro*, at 136-137.) While the moving party there timely served the opposing counsel via email on May 4, 2021, the notice did not get filed until May 5, 2021. (*Id.*, 132, fn 2.) The moving party used a third party electronic legal service provider in connection with submitting the motion, and received a notification on May 4, 2021 that the electronic filing was "Under Court Clerk Review." (*Id.*) However, the motion did not get actually filed until May 5, 2021. The Fourth Appellate District Court in that case held: "Petitioner did not file its notice of motion until May 5, 2021. That means the trial court properly denied the motion ... as untimely." (*Id.* at 137) The Fourth Appellate District Court in *Golf & Tennis Pro Shop* explained that the 45-day deadline is "mandatory" and that the court had no jurisdiction to consider a belated motion to compel. *Id.*

Here, under *Golf & Tennis Pro*, the Motion wasn't filed until May 11, 2026 and using the March 19, 2026 date, the motion is untimely and the Court is without jurisdiction to consider it.

## II. Meet and Confer

Additionally, the Dupuys have not complied with the meet and confer requirement for this motion. Under CCP § 2030.300(b)(1), a motion under CCP § 2030.300(a) shall be accompanied by a meet and confer declaration under Section 2016.040.CCP § 2016.040(a) provides: "(a) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either ***in person, by telephone, or by videoconference***, to informally resolve each issue presented by the motion."

Here, there is no indication that the Dupuys complied with the above. While it appears there were email communications, there is no indication that a meet and confer was accomplished in person, by telephone or by video conference. For this procedural reason the Court denies the motion.

3.

| CASE #      | CASE NAME            | HEARING NAME                                                                                                      |
|-------------|----------------------|-------------------------------------------------------------------------------------------------------------------|
| CVRI2507410 | BATRES VS FCA US LLC | DEMURRER ON 1ST AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF CRYSTAL BATRES BY FCA US LLC |

**Tentative Ruling:**

**Moving Party:** Defendant FCA US, LLC

**Responding Party:** Plaintiff Crystal Batres

This is a lemon law case. On 4/24/2026 Crystal Batres (“Plaintiff”) filed the operative first amended complaint (“FAC”) against FCA, US LLC (“FCA”) and I-10 Chrysler Dodge Jeep Ram (“Dealership”) asserting the following causes of action: (1) violation of Song-Beverly (Civil Code § 1793.2(d)); (2) violation of Song-Beverly (Civil Code § 1793.2(b)); (3) violation of Song-Beverly (Civil Code § 1793.2(a)(3)); (4) breach of implied warranty of merchantability; (5) negligent repair; and (6) fraudulent concealment.

Now, FCA demurs to the sixth cause of action as alleged in the FAC. FCA argues the sixth cause of action for fraudulent concealment fails because Plaintiffs cannot establish a direct transaction with FCA, the economic loss rule applies, and the allegations lack the required specificity for a fraud-based claim.

In opposition, Plaintiff argues *Dhital* holds that the economic loss rule does not bar fraudulent concealment claims in the lemon law context, that the complaint alleges a duty to disclose and transactional relationship, and that the cause of action otherwise properly states facts sufficient.

In reply, FCA restate the arguments from the moving papers.

**ANALYSIS**

**A. Meet & Confer Requirement**

CCP § 430.41 requires a meet and confer process via **phone or in person** before filing a demurrer five days before the responsive pleading is due. The meet and confer process requires the moving party to identify the causes of action or allegations